

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

VISUAL COMFORT & Co., *Complainant*

v.

COSCO SHIPPING LINES (NORTH AMERICA) INC.,
Respondent.

DOCKET NO. 24-01

Served: February 6, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

**ORDER GRANTING COMPLAINANT’S MOTION TO AMEND COMPLAINT AND SUBSTITUTE
RESPONDENT, AND GRANTING RESPONDENT’S MOTION TO DISMISS**

On February 5, 2024, Complainant Visual Comfort & Co. (“VCC”) filed an Unopposed Motion for Leave to File Amended Complaint (“MTA”), in response to COSCO Shipping Lines (North America) Inc.’s (“COSCON”) Verified Motion to Dismiss for Lack of Jurisdiction (“MTD”), filed on January 24, 2024.

The MTD asserts that the current Respondent, COSCON, is “not a vessel-operating ocean common carrier as that term is defined in the Shipping Act and FMC regulations” but rather, “serves only as the general agent for North America for the actual ocean common carrier, identified on the FMC’s website as ‘COSCO Shipping Lines Co., Ltd.’” MTD at 1, 3; Complaint at 2, ¶ 7. COSCON asserts that it is an agent that does not hold itself out “in its own name” as performing as an ocean common carrier, and accordingly, “the Commission does not have personal jurisdiction over COSCON or subject matter jurisdiction of VCC’s claims against COSCON.” *Id.* at 3-4; 5-6; Verification of Houghtalin. COSCON further states that, “the appropriate measure is for VCC to file a new complaint naming only COSCO Shipping Line Co., Ltd. as respondent or to file an amended complaint substituting COSCO Shipping Lines Co., Ltd. for COSCON.”¹ MTD at 7.

Accordingly, and after conferring with counsel, VCC filed the MTA and attached the proposed Amended Complaint identifying “COSCO Shipping Lines Co., Ltd.” (“COSCO”) as the Respondent and alleging that “COSCO is a vessel-operating ocean common carrier as that term is defined by 46 U.S.C. § 40102(18) with organization number 015614.” Amended Complaint at 2, ¶ 7. VCC asserts in the MTA that it has amended the complaint only as to the identity and description of the Respondent and, “proposes no other amendments.” MTA at 2.

¹ Counsel for COSCON indicated that “the new pleading may be served on the undersigned, rather than any COSCO entities...[to] minimize any delay.” *Id.*

The complaint in this matter was filed on January 4, 2024. COSCON filed the MTD 20 days later, and VCC filed the MTA and a copy of the amended complaint 12 days thereafter. Pursuant to 46 C.F.R. § 502.66(a) and (b), there is good cause to allow the filing of the amended complaint because it does not “broaden the issues,” was filed early in the proceedings, and is not opposed by Respondent. Since the parties’ motions indicate that they agree that COSCON is not an appropriate party to this proceeding, good cause is also established to dismiss the proceeding as to COSCON and substitute COSCO Shipping Lines Co., Ltd as the sole respondent.

Accordingly, it is

ORDERED that Respondent’s Motion to Dismiss is **GRANTED** as to COSCO Shipping Lines (North America) Inc., and it is removed as a party to this proceeding. It is further

ORDERED that Complainant’s Motion for Leave to File Amended Complaint, and thereby substitute COSCO Shipping Lines Co., Ltd as the sole Respondent in this proceeding, is **GRANTED**. It is further

ORDERED that Respondent COSCO Shipping Lines Co., Ltd. respond to the Amended Complaint within 14 days after service of this Order, pursuant to §502.66(b) and in order to avoid further delay. It is further

ORDERED that the parties submit a joint status report and proposed schedule within 25 days of service of the answer, as set forth in the Initial Order in this proceeding, and to follow the other instructions contained therein.

The Secretary is requested to docket the Amended Complaint with today’s date, February 6, 2024. Complainant served the Amended Complaint on Counsel identified in the Notice of Special Appearance and the Motion to Dismiss, and pursuant to Commission Rule § 502.66(b), the undersigned authorizes Complainant’s service of this pleading, and the Secretary need not provide further service. Further, the Secretary is requested to revise the caption in this matter to remove COSCO Shipping Lines (North America) Inc. as Respondent and substitute COSCO Shipping Lines Co. Ltd as Respondent.



Linda S. Harris Crovella
Administrative Law Judge